



**COUNCIL OF
THE EUROPEAN UNION**



"Towards a space strategy for the EU that benefits its citizens"

Council Conclusions

***3094th COMPETITIVENESS (Internal Market, Industry, Research and Space) Council meeting
Brussels, 31 May 2011***

The Council adopted the following conclusions:

"The COUNCIL OF THE EUROPEAN UNION

HAVING REGARD TO

- (1) The resolution on "Global challenges: taking full benefit of European space systems", as adopted by the Competitiveness Council meeting on 25 November 2010¹, reflecting the orientations endorsed at the Seventh Space Council;
- (2) The Council conclusions on "An integrated industrial policy for the globalisation era" adopted on 10 December 2010² and on the Europe 2020 Flagship Initiative: "Innovation Union Accelerating the transformation of Europe through innovation in a fast changing world", adopted on 25-26 November 2010³; the Council conclusions on "A digital agenda for Europe" adopted 31 May 2010⁴; the Council conclusions on the "Action Plan on Global Navigation Satellite System (GNSS) Applications" adopted on 15 October 2010⁵;
- (3) the Communication from the Commission Europe 2020 - A strategy for smart, sustainable and inclusive growth, adopted on 3 March 2010⁶;

¹ Doc. 16864/10
² Doc. 17838/10
³ Doc. 17165/10
⁴ Doc. 10130/10
⁵ Doc. 14146/10
⁶ Doc. 7110/10

P R E S S

- (4) The Conclusions on Innovation adopted by the European Council on 4 February 2011⁷ and the Presidency conclusions of the European Council of 11 and 12 December 2008 on the need to include space technology and services in the planned European plan for innovation;
- (5) the orientations of the Fourth, Fifth and Sixth Space Council, subsequently adopted by the respective Competitiveness Councils on 22 May 2007⁸, on 26 September 2008⁹, on 29 May 2009¹⁰;

WHEREAS

- (6) These conclusions on EU space policy are without prejudice to the forthcoming decision on the next Multiannual Financial Framework reflecting the consolidation efforts being made by Member States to bring deficit and debt onto a more sustainable path and reflecting the conclusions on innovation adopted by the European Council on 4 February 2011;
 - (7) The EU competence in space, established by the entry into force of the Treaty on the Functioning of the European Union¹¹, strengthens the political dimension of space in Europe;
1. EMPHASISES that space activities and applications are vital to our society's growth and sustainable development, and constitute a significant and concrete contribution to the Europe-2020 strategy;
 2. WELCOMES as a useful basis for discussion the communication from the Commission entitled "Towards a space strategy for the European Union that benefits its citizens"¹²;

I. PRIORITY ACTIONS

3. REAFFIRMS that the top priority for a European Union action in the European Space Policy is the timely and efficient implementation of the flagship programmes GNSS (EGNOS and Galileo) and GMES;
4. In addition CONSIDERS that climate change, security, competitiveness, innovation, space research and development (R&D) and exploration, may require specific action in order to achieve the objectives of this new policy, in an overall context of strict economy of resource;

Flagship Programmes

5. REAFFIRMS its strong commitment to the EU flagship programmes GNSS (EGNOS and Galileo) and GMES; ACKNOWLEDGES their substantial economic and social benefits for the European Union and its citizens through user-driven applications; NOTES that the Commission will elaborate a proposal for the funding of these flagship programmes as part of the next Multiannual Financial Framework; CONSIDERS that, both programmes being European programmes under EU responsibility, should continue to be financed by the EU budget; INVITES the Commission to develop appropriate measures to optimise the management of these programmes, taking particular account of the specificities of large scale and long term projects;

⁷ Doc. EUCO 2/1/11 REV 1 CO EUR 2 CONCL 1

⁸ Doc. 10037/07

⁹ Doc. 13569/08

¹⁰ Doc. 10500/09

¹¹ Notably articles 4 and 189

¹² Doc. 8693/11

6. EMPHASISES the need for the Commission to encourage a development of an economically relevant European downstream market;

Galileo and EGNOS

- 7 RECALLS the Council conclusions of 31 March 2011 on the mid-term review of the European satellite radio navigation programmes¹³; and in particular the need for a timely deployment and exploitation of a competitive and independent Galileo constellation and its services; REITERATES that it is of utmost importance that the EGNOS coverage for the entire European Union is ensured;

GMES

8. REAFFIRMS the need for the Commission to ensure a quick and effective implementation of the GMES programme (Initial Operations) by 2014, in partnership with the Member States; INVITES the Commission to present by the end of 2011 a proposal for the operations and to clarify the governance of GMES from 2014 onwards; and RECALLS the role of ESA in respect to the GMES; RECALLS the role of EUMETSAT and other organizations, as appropriate, while reiterating that the participation of all EU Member States therein should be encouraged or facilitated;
9. RECOGNIZES the necessity and importance of guaranteeing continuous and long term sustainable access to earth observation data and derived Earth monitoring services provided by GMES in order to encourage the development of a European industry of well-diversified downstream services; the provisions of GMES services shall be decentralised, where appropriate, to integrate at European level existing space, in-situ and reference data inventories and capacities in Member States, thus avoiding duplication. Procurement of new data that duplicates existing sources shall be avoided unless the use of existing or upgradeable data sets, is not technically feasible or cost effective;¹⁴
10. SUPPORTS the strengthening of the contribution of GMES to climate change mitigation and adaptation in order to improve the definition and implementation of our policies; URGES the European Commission, as manager of the programme, to assess and define in close cooperation with all relevant actors the GMES climate change monitoring service specification, making use as appropriate of the GMES Users Forum;
- 11 URGES the Commission to develop the GMES data and information policy based on full and open access to information produced by GMES services and data collected through GMES infrastructure, subject to relevant international agreement, security restrictions and licensing conditions, including registration and acceptance of users licenses and which maximizes the use of GMES and build on a well balanced approach between free-of-charge access to certain public data and services and the need to strengthen Earth observations markets in Europe and the growth of existing and emerging European data and data service providing businesses; as well as the governance of the security of GMES components and information;
12. STRESSES the need for an appropriate European data security policy in order to protect the interests of EU;

¹³ Doc. 8395/11

¹⁴ Text of Art. 5 (2) of Regulation (EU) n° 911/2010

Security

13. Considering the vulnerability of space systems and the possibility of their misuse, INVITES the Commission in close cooperation with Member States to take all the appropriate measures for the timely implementation of adequate security requirements specific to the GNSS and GMES programmes and to pay attention to security prerequisites, which are necessary for the realization of any new space systems;
14. RECOGNISES the need for an effective Space Situation Awareness (SSA) capability as an activity at European level, inter alia, in order to enhance the safety of European space assets and of its future launches from space debris and other objects in space as well as space weather phenomena; to this end, the Union should make the widest possible use of assets, competences and skills that are already existing or being developed in Member States, at European level and as appropriate internationally;
15. Recognizing the dual use nature of such a system and taking into account its particular security dimension, CALLS UPON the European Commission and EEAS, in close cooperation with ESA and Member States, which own such assets and have capacities and in consultation with all actors involved, to come forward with proposals to fully exploit and build on these assets and capacities in order to develop a Space Situational Awareness (SSA) capability as an activity at European level and in that context, to define, an appropriate governance and data policy taking care of the high sensitivity of SSA data;
16. NOTES the security dimension of GMES as a civilian system under civil control which can contribute to saving human lives and property in many different crisis and disaster situations, thus materially contributing to the security of the Union and its citizens; and INVITES the Commission in close cooperation with Member States to further define the content of the security dimension of GMES, corresponding to a clear set of security requirements, to define appropriate governance and data policy, and to speed up the development of related services;
17. INVITES the Commission, in close collaboration with Member States and after consultation with ESA and EDA to evaluate the need for improvements of the available space infrastructure to develop secure services based on the integration of global satellite communications, earth observation and positioning; ENCOURAGES the European Commission and European External Action Service (EEAS) to use the competencies already developed by all relevant actors for these purposes and to define coordination and resourcing mechanisms which would allow the exploitation of space assets and services owned or operated by the EU, other international organisations, commercial providers, or the Member States to fulfil more effectively operational needs in the areas of crisis management and external action;

Space exploration

18. INVITES the Commission in close cooperation with ESA to examine possible options for involvement in space exploration setting out cost benefit analyses, so that the Council can return to this issue in due course;
19. In this context, RECALLS the areas of critical enabling technologies (automated and robotic systems, advanced propulsion, energy systems and life support systems), utilization of the International Space Station (ISS) and space transportation;

20. WELCOMES the setting up of the high-level international platform to identify the areas of space exploration open to international cooperation, underlining its political importance;

II. COMPETITIVENESS

21. RECALLS¹⁵ its invitation to all European institutional actors in order to maintain an independent, reliable and cost effective access to space at affordable conditions, to consider as a high priority the use of launchers developed in Europe and to explore issues relating to their possible participation in launcher-related exploitation activities;
22. CONSIDERS that a space industrial policy should be drawn up, in close cooperation with the ESA and the Member States, to promote a competitive space industry in Europe; WELCOMES the Commission's intention to pursue a space industrial policy development, fully reflecting the specific needs of each sub-sector, and identifying concrete measures. The main objectives of this EU policy could include:
- ensuring a steady and balanced development of the distributed capabilities of the European industrial base and the overall value chain, including SMEs,
 - enhancing competitiveness in Europe and on the world stage, with the aim of technological leadership in some sectors, and a sufficient level of autonomous capacity in other sectors, such as critical components;
 - guaranteeing security of supply for strategic sub-sectors such as e.g. satellite-based navigation, observation, telecommunication, space exploration and launchers;
 - fostering the development of the market for space products and services;
 - acknowledging the pre-commercial public procurement of innovation as an instrument for stimulating the independent development of critical technologies;
23. RECOGNIZES that the European markets could better serve the needs of European citizens in a competitive and cost effective manner, thus sustaining a self-reliant industrial capacity and boosting new job opportunities;
24. UNDERLINES that institutional programmes contribute to the development of new technologies;
25. Stressing the importance for the future common strategic framework, INVITES the Commission to develop, where appropriate, Research and Innovation strategic agendas for Space, in order to ensure consistency between the R&D efforts of the EU with those undertaken by ESA and the Member States, on a voluntary basis, while avoiding duplications, especially with regard to development of critical and breakthrough technologies and downstream applications (notably those resulting from Galileo/EGNOS or GMES downstream markets);
26. SUPPORTS the Commission's and other European actors' commitment to boosting space R&D and innovation to decrease Europe's technological dependence and to foster cross-fertilisation between space and non-space industries that ultimately benefits the competitiveness of the overall European economy;
27. STRESSES the need to involve the Member States in the work for the definition and implementation of the recommendation of the joint EC-ESA-EDA taskforce on technological non dependence without delay and INVITES the taskforce to continue its efforts;

¹⁵ Text reflects point 5 of the 7th Space Council Resolution, doc. 16864/10

28. INVITES the Commission, the Member States, in partnership with ESA, to continue to ensure a consistent procurement approach taking into account the specificities of the space sector, considering in particular:
- long-term commitments and stability,
 - predictability of rules and budget, systematic cost control and monitoring of cost developments;
 - the use of European means and assets in European space activities,
 - greater involvement of SMEs in the production of space applications and the development of downstream services;
 - an effective competition in the European space sector;
 - international competitiveness of the European Space sector;
 - EU and Member States' international obligations under the WTO agreements;
29. INVITES the Commission and Member States to consider the important role of communications satellites in delivering on the Digital Agenda for Europe;
30. CONSIDERS the necessity of defining the needs and making available sufficient radio-spectrum bands for European space systems, including the communications satellites;

III. INTERNATIONAL DIMENSION

31. INVITES the Commission, in close collaboration with Member States and in consultation with ESA to work out an international cooperation strategy; to strengthen its 'space dialogues' with its strategic partners (USA and the Russian Federation) and to explore the possibility to establish similar space dialogues with other existing and emerging space powers (such as the People's Republic of China, Japan, the Republic of Korea, Brazil, India, the Republic of South Africa) in view of the important contribution successful partnerships in space can make to the overall development of international relations, and to regularly inform the Council;
32. SUPPORTS the inclusion of the space component in the EU's external policy and its promotion within international agreements, in line with the overall goals of such an international cooperation strategy and on the basis of case-by-case analysis and decisions; INVITES the Commission to further develop the ongoing space partnership with Africa and to explore the scope for developing space cooperation with Latin America and other world regions;
33. SUPPORTS the efforts of the international community to strengthen the security, safety and sustainability of activities in outer space, in particular through the international Code of Conduct for Outer Space activities proposed by the European Union;

IMPROVED GOVERNANCE

34. Recalling that the European Space Policy governance is based on three main actors, the EU, ESA and their respective Member States, UNDERLINES the fact that the Union's enhanced role in European space policy goes hand in hand with increased interaction among these three actors based on the complementarity of their roles and responsibilities; WELCOMES the Commission's commitment to strengthening the partnership with Member States and to further developing the EU-ESA relationship on the basis of the EU-ESA Framework Agreement, avoiding any unnecessary duplication of activities and improving their complementarity of efforts;

35. INVITES the European Commission and all involved stakeholders to further optimise, on the basis of lessons learned, the management of ongoing and future EU space programmes to ensure timely delivery, cost containment and the provision of robust and transparent information to the Member States;
 36. INVITES the Commission to organise broad consultations on and discussion of main elements of a possible future European Space Programme."
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